

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
DEVALLE SMITH,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NYPD Detective EDWIN
SANTIAGO, Shield No. 5426, and NYPD Officers JOHN and
JANE DOE No. 1 – 10,**

Defendants.
-----X

Index No.:

SUMMONS

Basis of Venue:

Location Of Incident

Plaintiff Designates Kings
County as Place of Trial

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
February 24, 2024

By: David R. Kline, Jr.
David R. Kline, Esq.
DRK Law, LLC
195 Montague Street, Suite 1419
Brooklyn, New York 11201
C: (917) 596-4320
E: David@DRKlineLaw.com

Attorneys for Plaintiff

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, NY 10007.

NYPD Detective EDWIN SANTIAGO, Shield No. 5426, 73rd NYPD Precinct, 1470 E. New York Avenue, Brooklyn, NY 11212.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X

Index No.:

DEVALLE SMITH,

Plaintiff,

-against-

VERIFIED COMPLAINT

JURY TRIAL DEMAND

**THE CITY OF NEW YORK, NYPD Detective EDWIN
SANTIAGO, Shield No. 5426, and NYPD Officers JOHN and
JANE DOE No. 1 – 10,**

Defendants.

-----X

TO THE SUPREME COURT OF THE STATE OF NEW YORK:

Plaintiff **DEVALLE SMITH**, by his attorneys, DRK Law, LLC, by David R. Kline, Esq.,
respectfully, upon information and belief, alleges the following for this Verified Complaint:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover monetary damages (special, compensatory, and punitive) arising out of defendants' violation of plaintiff's rights as secured by the Constitution of the United State of America, 42 U.S.C. § 1983, the laws of the State and City of New York, and the common law.

THE PARTIES

2. Plaintiff **DEVALLE SMITH** is a United States Citizen and was at all times relevant herein a resident of the State of New York.

3. Defendant **THE CITY OF NEW YORK** (“City” or “the City” or “Defendant City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant **THE CITY OF NEW YORK** maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of New York State law, acting under the direction and supervision of the aforementioned municipal corporation, **THE CITY OF NEW YORK**.

5. Defendant **NYPD Detective EDWIN SANTIAGO**, Shield No. 5426, was, at all times relevant to this Complaint, a police officer and detective employed by the **CITY**. At all times relevant herein, defendant **NYPD Detective EDWIN SANTIAGO**, was assigned to work at the NYPD 73rd Precinct. In this role, defendant **NYPD Detective EDWIN SANTIAGO** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

6. Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 10**, were, at all times relevant to this Complaint, police officers employed by the **CITY**. In this role, Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 10** were duly appointed and acting as officers, servants, employees, and/or agents of the City of New York. At all relevant times, they were acting in the scope of their employment and under color of state law.

JURISDICTION AND VENUE

7. This action is brought pursuant to the laws of the City and State of New York, 42 U.S.C. Act of 1871 § § 1983 and 1988, the Fourth and Fourteenth Amendments to the United States Constitution, *inter alia*.

8. Venue is proper in this county as the transactions and occurrences took place in Kings County, City and State of New York.

PROCEDURAL REUIREMENTS

9. Plaintiff has fulfilled all procedural requirements for filing suit, including complying with GML § 50-e.

10. On January 24, 2023, Plaintiff served a Notice of Claim (“NOC”) on defendant **CITY** via the New York City, Office of the Comptroller’s “eClaim system.”

11. On January 22, 2024, plaintiff testified at a GML § 50-h Hearing.

12. More than thirty (30) days have elapsed since the filing of the NOC in this case.

13. As of the date of this Verified Complaint, defendant **CITY** has neglected and/or refused to adjust and/or pay the plaintiff’s claim.

14. This action was commenced within one year and ninety days of the occurrence of the actions and events upon which this action is based.

JURY DEMAND

15. Plaintiff demands a trial by jury on each and every cause of action.

STATEMENT OF FACTS

16. On or about May 26, 2022, plaintiff **DEVALLE SMITH** was unlawfully detained and arrested by **NYPD Officers JOHN and JANE DOE No. 1 – 10** and **NYPD Detective EDWIN SANTIAGO**.

17. At the time of his unlawful arrest, plaintiff had just parked his car at the intersection of Legion Avenue and Riverdale Street, County of Kings, State of New York, when **NYPD Officers JOHN and JANE DOE No. 1 – 10** and **NYPD Detective EDWIN SANTIAGO** grabbed him, pinned his arms behind his back, and cuffed his wrists together with metal handcuffs.

18. Defendant NYPD officers applied the metal handcuffs so tightly to plaintiff's wrists that they cut off circulation to his hands and left contusions on his wrists.

19. At no point did plaintiff resist the defendant NYPD officers—he fully complied with every order he was given.

20. **NYPD Officers JOHN and JANE DOE No. 1 – 10** and **NYPD Detective EDWIN SANTIAGO** put plaintiff into the back of an NYPD van and drove him in custody to the 73rd NYPD Precinct, located at, 1470 E. New York Avenue, County of Kings, State of New York.

21. Soon after arriving at the 73rd NYPD Precinct, **Detective SANTIAGO** and **NYPD Officers JOHN and JANE DOE No. 1 – 10** put plaintiff into a small interrogation room. **Detective SANTIAGO** then proceeded to interrogate plaintiff for approximately one (1) hour.

22. Upon information and belief, **Detective SANTIAGO** questioned plaintiff regarding a shooting that had occurred in Brooklyn, New York on April 30, 2022.

23. **Detective SANTIAGO** questioned plaintiff regarding his whereabouts on April 30, 2022.

24. Plaintiff told **Detective SANTIAGO** that he was in Schenectady, New York, at a casino on April 30, 2022.

25. Plaintiff also told **Detective SANTIAGO** that he was in Schenectady several days prior to and after April 30, 2022.

26. Moreover, plaintiff offered **Detective SANTIAGO** proof of his whereabouts in the form of receipts, phone records, video surveillance from the casino, and other documentation that demonstrated his location on April 30, 2022.

27. **Detective SANTIAGO** refused to review any of the evidence presented and continued to falsely insist that plaintiff was involved in the alleged shooting.

28. Despite having no evidence that plaintiff had committed a crime—and overwhelming evidence that he in fact had not committed any crime—**Detective SANTIAGO** and **NYPD Officers JOHN and JANE DOE No. 1 – 10** continued to illegally detain plaintiff.

29. After **Detective SANTIAGO** finished interrogating plaintiff, he put him into an unsanitary holding cell within the 73rd NYPD Precinct. **Detective SANTIAGO** and **NYPD Officers JOHN and JANE DOE No. 1 – 10** held plaintiff at the 73rd NYPD Precinct for approximately three (3) days.

30. While **Detective SANTIAGO** and **NYPD Officers JOHN and JANE DOE No. 1 – 10** had plaintiff in custody at the 73rd NYPD Precinct, they knowingly and intentionally submitted false and/or incomplete and/or misleading information to the Kings County District Attorney's Office wherein they falsely accused plaintiff of having committed multiple crimes.

31. **Detective SANTIAGO and NYPD Officers JOHN and JANE DOE No. 1 – 10** then took plaintiff in custody to Kings County Central Booking located at 120 Schermerhorn Street, County of Kings, State of New York.

32. At Kings County Central Booking, plaintiff was formally charged, via criminal complaint with, among other things, criminal possession of a firearm in the second degree (NY PL § 265.03).

33. After approximately twenty-four (24) hours at central booking, claimant was brought before a judge for arraignment.

34. At his arraignment, plaintiff entered a plea of not guilty and was released without bail on supervised release. Pursuant to the conditions of his release, plaintiff was required to attend numerous in-person meetings with supervised release.

35. On November 28, 2022, after multiple in-person court appearances, the Kings County District Attorney's Office dismissed the erroneous charges against plaintiff. Upon information and belief, the District Attorney dismissed the charges because plaintiff was not in Kings County on the date of the alleged crime.

36. At no point relevant herein did plaintiff possess any weapon or contraband.

37. At no point relevant herein did plaintiff violate any laws.

38. At no point relevant herein did defendant NYPD Officers have the probable cause necessary to arrest plaintiff.

39. As a direct result of Defendants' actions, plaintiff spent approximately four (4) days illegally held in custody, endured physical pain, and suffered emotional and psychological injury.

STATE LAW CLAIMS**CAUSE OF ACTION ONE****Common Law False Arrest**

40. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

41. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, rob plaintiff of his freedom of movement.

42. As detailed in the preceding paragraphs, defendants did confine plaintiff without probable cause.

43. Plaintiff was conscious of his unlawful confinement.

44. Plaintiff did not consent to his unlawful confinement.

45. The defendants each deprived plaintiff knowingly, intentionally, recklessly, and negligently.

46. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

47. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

48. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

49. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION TWO**Assault**

50. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

51. The defendants, acting in concert, did make offensive contact with plaintiff's body and in doing so caused significant physical injury.

52. Plaintiff did not consent to any physical contact from any defendants.

53. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

54. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

55. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

56. As a direct and proximate cause of the Defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION THREE**Battery**

57. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

58. The defendants, acting in concert, did make offensive contact with plaintiff's body and in doing so caused significant physical injury.

59. The defendants, acting in concert, did, through their intentional and/or reckless actions, put plaintiff in imminent apprehension of harmful contact.

60. Plaintiff did not consent to any physical contact from any defendants.

61. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

62. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

63. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

64. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION FOUR
Intentional Infliction of Emotional Distress

65. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

66. Defendant NYPD members and officers did, individually and in concert, intentionally engage in conduct against plaintiff that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency. Specifically, *inter alia*, the NYPD defendants held plaintiff in handcuffs in a public hallway and on a public street.

67. The defendant NYPD Officers' conduct towards plaintiff was extreme and outrageous.

68. The defendant NYPD officers' conduct had a substantial probability of causing severe emotional distress to plaintiff.

69. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

70. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such unlawful conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

71. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

72. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION FIVE
Negligent Infliction of Emotional Distress

73. Plaintiff repeats and realleges every allegation set for in the preceding paragraphs.

74. Defendant NYPD members and officers did, individually and in concert, intentionally engage in conduct against plaintiff that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency. Specifically, *inter alia*, the NYPD defendant held Plaintiff in handcuffs in a public hallway and on a public street.

75. The defendant NYPD members and officers' conduct towards plaintiff was extreme and outrageous.

76. The defendant NYPD members and officers' conduct had a substantial probability of causing severe emotional distress to plaintiff.

77. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

78. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such unlawful conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

79. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

80. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION SIX
Negligent Hiring, Retention, and Supervision

81. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

82. Upon information and belief, the defendant NYPD Officers involved in this incident were unfit and incompetent to serve as NYPD police officers and members.

83. Upon information and belief, defendant **CITY's** negligence in screening, hiring, training, disciplining, and retaining these defendant NYPD Officers caused or

proximately caused each of Plaintiffs' injuries, including, but not limited to, his emotional and psychological injures.

CAUSE OF ACTION SEVEN
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Search and Seizure

84. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

85. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, rob Plaintiff of his freedom of movement.

86. Plaintiff is a "person aggrieved," as defined by New York City Administrative Code § 8-801.

87. As detailed in the preceding paragraphs, defendant NYPD Officers did confine plaintiff without probable cause.

88. Plaintiff was conscious of his unlawful confinement.

89. Plaintiff did not consent to his unlawful confinement.

90. The defendant NYPD Officers each deprived plaintiff of his freedom of movement knowingly, intentionally, recklessly, and negligently.

91. Defendant NYPD Officers are "covered individuals," as defined by New York City Administrative Code § 8-801.

92. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

93. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent

such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

94. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

95. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION EIGHT
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Use of Excessive Force

96. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

97. The **CITY** defendant and each individual NYPD defendants, acting in concert, did, without probable cause, use excessive force against plaintiff.

98. Plaintiff is a "person aggrieved," as defined by New York City Administrative Code § 8-801.

99. The defendant NYPD Officers, acting in concert and under color of state law, did, without probable cause or legal justification, use excessive force against plaintiff.

100. As detailed in the preceding paragraphs, defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against him. Moreover, defendant NYPD officers did point their guns directly at his face and head.

101. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent

such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

102. Defendant NYPD officers are “covered individuals,” as defined by New York City Administrative Code § 8-801.

103. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

104. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

105. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

106. As a direct and proximate cause of the defendants’ actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

FEDERAL LAW CLAIMS

CAUSE OF ACTION NINE

42 U.S. Code § 1983 – Deprivation of Fourth Amendment Rights to be Free from Unreasonable Searches and Seizure

107. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

108. The **CITY** Defendant and each individual Defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive Plaintiff of his

constitutional rights secured by 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution.

109. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, rob plaintiff of his freedom of movement.

110. As detailed in the preceding paragraphs, defendants did physically confine plaintiff without probable cause.

111. Plaintiff was conscious of his unlawful confinement.

112. Plaintiff did not consent to his unlawful confinement.

113. The defendants each deprived plaintiff knowingly, intentionally, recklessly, and negligently.

114. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

115. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

116. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

117. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION TEN

42 U.S. Code § 1983 – Deprivation of Fourteenth Amendment Right of Due Process / Fourth Amendment Excessive Force

118. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

119. The **CITY** defendants and each individual defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

120. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, use excessive force against plaintiff.

121. As detailed in the preceding paragraphs, Defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against him. Moreover, defendant NYPD Officers did point their guns directly at his face and head.

122. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

123. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

124. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

WHEREFORE, Plaintiff **DEVALLE SMITH** respectfully requests judgement against Defendants as follows:

- a. An award of compensatory damages against all defendants in an amount to be determined at trial.
- b. An award of special damages against all defendants in an amount to be determined at trial.
- c. An award of punitive damages against all defendants in an amount to be determined at trial.
- d. An award of reasonable attorney's fees and costs.
- e. Such other relief that this Courts deems just and proper, together with attorney's fees, interest, costs, and disbursements.

Dated: Brooklyn, New York
February 24, 2024

By: David R. Kline, Jr.

David R. Kline, Esq.

DRK Law, LLC

195 Montague Street, Suite 1419

Brooklyn, New York 11201

C: (917) 596-4320

E: David@DRKlineLaw.com

Attorneys for Plaintiff

ATTORNEY VERIFICATION

David R. Kline, an attorney duly licensed to practice law in the Courts of the State of New York, affirms and states as following under penalty of perjury:

I am a member of the law firm of **DRK LAW, LLC**, I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon personal knowledge, are based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

Dated: Brooklyn, New York
February 24, 2024

By: David R. Kline, Jr.
David R. Kline, Esq.
DRK Law, LLC
195 Montague Street, Suite 1419
Brooklyn, New York 11201
C: (917) 596-4320
E: David@DRKlineLaw.com